



FORTITUDE INFRASTRUCTURE

Veteran Owned & Operated

Directional Drilling



Telecommunications



Fiber Construction



Underground Infrastructure

SUBCONTRACTOR AGREEMENT

This agreement is subject to arbitration pursuant to applicable state arbitration laws.

This Agreement is entered into by and between:

FORTITUDE INFRASTRUCTURE LLC

1309 Coffeen Avenue, Suite 1200

Sheridan, Wyoming 82801 (hereinafter referred to as "Fortitude")

and

(hereinafter referred to as "Recipient" or "Subcontractor")

on this the _____ day of _____, 20 .

It is agreed upon that the Recipient, as a subcontractor for Fortitude Infrastructure LLC, will perform all duties for agreed-upon projects.

COMPANY INFORMATION

Company Name: _____

Company Address: _____

Name & Title of Authorized Representative: _____

EIN #: _____

Point of Contact: _____

Email Address: _____

Office Phone #: _____

Mobile Phone #: _____

Emergency Contact Name & Number: _____

DESCRIPTION OF WORK

SUBCONTRACTOR agrees to perform safe, quality work in a timely manner and in accordance with all customer specifications, engineering requirements, utility requirements, prints, maps, safety standards, and applicable project standards.

The work shall be completed in accordance with project specifications and construction requirements provided by Fortitude Infrastructure LLC and/or its customers.

SUBCONTRACTOR acknowledges responsibility for all work performed by its employees, subcontractors, agents, operators, laborers, and representatives.

SUBCONTRACTOR shall provide all labor, supervision, equipment, fuel, tools, transportation, and incidentals necessary to complete the work unless otherwise agreed upon in writing.

SCOPE OF WORK / PRICES

Plowing, directional boring, missile boring, trenching, conduit placement, cable placement, restoration, clean-up, potholing, utility locating coordination, and related telecommunications construction services.

Fortitude Infrastructure LLC may furnish conduit, fiber, materials, maps, and associated project materials depending upon the scope of work.

Rates shall be provided separately upon execution of this Agreement and completion of onboarding requirements.

Fortitude Infrastructure LLC reserves the right to modify, suspend, or terminate scopes of work at any time based on customer requirements, project conditions, safety concerns, or operational needs.

TERM

Construction under this contract shall begin after SUBCONTRACTOR completes onboarding and satisfies all insurance and compliance requirements.

SUBCONTRACTOR may continue to work under this Agreement indefinitely provided the quality of work remains acceptable and project requirements continue.

Fortitude Infrastructure LLC reserves the right to terminate this Agreement immediately for safety violations, poor workmanship, customer complaints, project delays, non-compliance, insurance lapses, failure to follow specifications, or breach of this Agreement.

SAFETY & COMPLIANCE

SUBCONTRACTOR agrees to comply with all OSHA requirements, state and local regulations, utility owner specifications, customer standards, traffic control requirements, and safety procedures.

SUBCONTRACTOR shall be solely responsible for maintaining a safe work environment and for the conduct of its employees and representatives.

Any damages to utilities, property, roadways, landscaping, irrigation, customer facilities, or third-party infrastructure caused by SUBCONTRACTOR shall be the sole responsibility of SUBCONTRACTOR.

SUBCONTRACTOR agrees to immediately report all damages, incidents, injuries, utility strikes, or safety violations to Fortitude Infrastructure LLC.

SUBCONTRACTOR shall be responsible for all repair costs, utility claims, fines, penalties, restoration costs, legal claims, and customer chargebacks resulting from damages caused by SUBCONTRACTOR operations.

NON-COMPETE / NON-CIRCUMVENTION

SUBCONTRACTOR agrees not to enter into any direct contractual agreements, written or verbal, with any customer, client, municipality, utility provider, contractor, or project introduced by Fortitude Infrastructure LLC within the applicable project areas for a period of two (2) years following termination of this Agreement without written consent from Fortitude Infrastructure LLC.

SUBCONTRACTOR further agrees not to solicit Fortitude Infrastructure LLC employees, crews, customers, vendors, project managers, or business relationships during the term of this Agreement and for two (2) years thereafter.

INSURANCE

SUBCONTRACTOR agrees to obtain, deliver, and maintain Certificates of Insurance listing Fortitude Infrastructure LLC as Additional Insured.

Insurance shall include:

- Workers Compensation
 - Commercial General Liability
 - Comprehensive Automobile Liability
 - Umbrella Liability
-
- Coverage limits must meet project and customer requirements prior to commencement of any work.
 - Failure to maintain active insurance coverage shall constitute immediate grounds for suspension or termination.

INDEPENDENT CONTRACTOR STATUS

SUBCONTRACTOR is an independent contractor and not an employee of Fortitude Infrastructure LLC.

SUBCONTRACTOR shall be solely responsible for:

- Payroll taxes
- Workers compensation
- Employee benefits
- Licensing
- Permits
- Equipment
- Fuel
- Labor
- Compliance obligations

Nothing contained herein shall be construed as creating a partnership, joint venture, or employment relationship.

SETTLEMENT OF DISPUTES

- This Agreement is based upon good faith and fair dealings between the Parties.
- If a dispute occurs, both Parties agree to binding arbitration and shall abide by the decision of the Arbitrator.
- Arbitration shall take place in the State of Wyoming or in the state where the work is being performed, as determined solely by Fortitude Infrastructure LLC.

INVOICING

Invoices must specify:

- Type of work performed
- Footage completed
- Project/work order number
- Job address
- Daily production reports
- Any supplemental or additional approved work
- As-built documentation showing where work was performed

Daily sheets are required from each crew every day showing production, footage, locations worked, and completed work activity.

All invoices must include accurate as-built maps, drawings, or marked prints identifying the locations where work was completed.

All invoices must be submitted no later than Friday at 4:00 PM EST for processing during the current billing cycle.

Any invoices, dailies, as-builts, or supplemental documentation submitted after Friday at 4:00 PM EST may result in delayed payment processing until the following billing cycle.

Failure to properly submit dailies, production reports, as-builts, or required invoice documentation may delay payment approval.

Fortitude Infrastructure LLC reserves the right to reject incomplete, inaccurate, duplicate, unsupported, or unapproved invoices.

INVOICE & BILLING CONTACT INFORMATION

SUBCONTRACTOR shall designate an authorized billing representative responsible for all invoice communications, payment coordination, documentation submissions, and dispute resolution regarding billing matters.

Billing Contact Name: _____

Title/Position: _____

Company Email Address: _____

Mobile Phone Number: _____

Office Phone Number: _____

Mailing Address: _____

All invoices, dailies, as-builts, supplemental requests, change orders, and payment inquiries must be submitted through the designated billing contact listed above.

SUBCONTRACTOR acknowledges that Fortitude Infrastructure LLC shall rely upon the billing contact information provided herein for all official communications related to invoicing and payments.

It is the responsibility of SUBCONTRACTOR to immediately notify Fortitude Infrastructure LLC in writing of any changes to billing contact information.

Failure to maintain accurate billing contact information may result in delayed processing or payment delays, for which Fortitude Infrastructure LLC shall not be held liable.

RETAINAGE

A ten percent (10%) retainage may be held from each payment until reserves have met ,Two Hundred and Fifty Thousand Dollars (\$75,000.00)

These funds are intended to ensure project completion and may be used to cover damages, deficiencies, incomplete work, safety violations, customer chargebacks, or project-related expenses caused by the SUBCONTRACTOR.

Retainage funds will begin to be released 90 days after projects have been inspected, approved, and signed off.

Fortitude Infrastructure LLC reserves the right to offset unpaid damages, repairs, back charges, or deficiencies against retainage funds.

PAYMENT

Fortitude Infrastructure LLC agrees to pay SUBCONTRACTOR for the work described on the following terms:

NET 21 TERMS (unless a NET 10 is agreed upon with both parties) at a 4%.

All payments to the Recipient shall be made via direct deposit with the explicit consent of the Recipient.

There is a fee of \$30.00, as determined by the financial institution, for wire transfers, which shall be deducted from the payment to the Recipient. This fee may change at any time by the financial institution, and Recipient will be notified accordingly.

Deposit information will be provided via email to the Recipient on or before the day of transfer.

Payments to the “recipient” are subject to Fortitude Infrastructure LLC’s receipt of funds from the contractor. In the absence of such receipt, Fortitude Infrastructure LLC retains the right to defer payment to the “recipient” without liability.

After the initial payment cycle, payments may continue on a weekly basis depending upon approved invoicing, completed work, and project billing cycles.

Fortitude Infrastructure LLC reserves the right to withhold payment for defective work, incomplete work, missing documentation, damages, safety violations, customer disputes, or contract non-compliance until such issues are resolved.

BANKING INFORMATION FOR PAYMENT

SUBCONTRACTOR authorizes Fortitude Infrastructure LLC to remit payments electronically through ACH transfer, wire transfer, or other approved electronic payment methods.

The undersigned certifies that the banking information provided below is accurate and belongs to the SUBCONTRACTOR identified in this Agreement.

Bank Name: _____

Bank Branch Address: _____

Bank Contact Name (if applicable): _____

Bank Phone Number: _____

Routing Number (ACH): _____

Wire Routing Number (if different): _____

Account Number: _____

Account Type (Checking/Savings): _____

Name on Account: _____

Business Entity Name on Account: _____

Authorized Signer Name: _____

Authorized Signer Title: _____

SUBCONTRACTOR agrees to immediately notify Fortitude Infrastructure LLC in writing of any changes to banking information.

Fortitude Infrastructure LLC shall not be responsible for delayed, rejected, misapplied, or fraudulent payments resulting from inaccurate, incomplete, outdated, or unauthorized banking information provided by SUBCONTRACTOR.

Any fees incurred due to incorrect banking information, rejected transfers, returned payments, stop payments, or banking errors caused by SUBCONTRACTOR shall be the sole responsibility of SUBCONTRACTOR.

Fortitude Infrastructure LLC reserves the right to request additional verification documents including voided checks, bank letters, W-9 forms, identification, or written authorization prior to processing payments.

CONFIDENTIALITY & NON-CIRCUMVENTION

SUBCONTRACTOR acknowledges that Fortitude Infrastructure LLC may disclose confidential information including:

- Rates
- Contracts
- Customer relationships
- Pricing
- Vendor information
- Utility contacts
- Engineering and construction methods
- Project details
- Bid information
- Maps and prints
- Operational procedures

SUBCONTRACTOR agrees not to disclose, copy, distribute, or use such information outside the scope of this Agreement.

SUBCONTRACTOR further agrees not to circumvent Fortitude Infrastructure LLC by directly soliciting or contracting with customers or opportunities introduced through Fortitude for a period of two (2) years.

MISCELLANEOUS

- All required insurance certificates must be submitted prior to project commencement.
- Work must be completed in a professional and timely manner.
- Any repairs required due to SUBCONTRACTOR negligence or damage shall be completed at SUBCONTRACTOR expense.
- SUBCONTRACTOR shall be responsible for all permits, fines, citations, penalties, and violations caused by its operations.

Fortitude Infrastructure LLC shall not be responsible for equipment theft, loss, damages, employee disputes, fuel costs, lodging, or operational expenses incurred by SUBCONTRACTOR.

- This Agreement remains valid for the duration of projects unless otherwise modified in writing by both Parties.

GOVERNING LAW

This Agreement shall be governed by the laws of the State of Wyoming unless otherwise required by the laws of the state where the project is being performed.

ENTIRE AGREEMENT

This Agreement constitutes the full understanding between the Parties and supersedes all prior agreements or understandings, whether written or oral.
Any modifications must be in writing and signed by both Parties.

SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date first written above.

FORTITUDE INFRASTRUCTURE LLC

By: _____

Name: _____

Title: _____

Date: _____

SUBCONTRACTOR

Company Name: _____

Company Address: _____

By: _____

Name: _____

Title: _____

Date: _____



931.217.3769



jon.hunter@fortitude-infra.com